

**Form No:HCJD/C-121**  
ORDER SHEET  
**IN THE LAHORE HIGH COURT LAHORE**  
JUDICIAL DEPARTMENT

**Crl. Misc. No.236595/B/2018**

**Muhammad Ramzan**

**Vs. The State etc.**

| <b>S.No.of<br/>order/<br/>Proceeding</b> | <b>Date of<br/>order/<br/>Proceeding</b> | <b>Order with signature of judge, and that of parties<br/>or counsel, where necessary.</b> |
|------------------------------------------|------------------------------------------|--------------------------------------------------------------------------------------------|
|------------------------------------------|------------------------------------------|--------------------------------------------------------------------------------------------|

**17.01.2019**

**Rai Muhammad Hussain Kharral, Advocate for  
petitioner.  
Mr. Shabbir Ahmad, DPG.  
Mohsin Javed ASI with record.**

Through the instant petition the petitioner seeks post-arrest bail in case FIR No.212/18 dated 30.05.2018 registered u/s 376(ii), PPC, at P.S. Lundianwala, District Faisalabad.

2. The brief allegation against the petitioner as per contents of FIR is that he along with co-accused on gun point abducted the daughter of the complainant with intent to commit zina-bil-jabr and subsequently she was subjected to rape.

3. Heard. Record perused.

4. On perusal of the record, it transpired that the complainant has leveled the allegation of rape against four unknown accused while lodging the crime report and the alleged victim-prosecutrix Mst. Muqaddas Bibi during the medical examination also leveled allegation of rape against three unknown accused persons. The medical examination of the victim was conducted on 30.05.2018, wherein the doctor observed old ruptured hymen with healed margins and no tear, laceration, bruise, abrasion and swelling was found at private parts of the victim. The crux of the

arguments of the learned counsel for the petitioner was that other three accused, namely, Umar Farooq, Dilshad and Sabir Hussain, who were also nominated by the prosecution, were allowed pre-arrest bail, as the complainant and the alleged victim made statement before the learned Addl. Sessions Judge, Jaranwala that they have nominated the above said accused on the basis of suspicion. The other important aspect of this case is that as far as the DNA Report of the Punjab Forensic Science Agency is concerned, which reads as follows:

*“No conclusion can be made about Muhammad Ramzan (item # S3) as being the possible contributor to the DNA obtained epithelial fraction of item # 3.8)”*

5. From perusal of the contents of report of PSFA, it is clear that the DNA Report qua Muhammad Ramzan present petitioner is negative in nature and the medico-legal report issued by the doctor does not connect the present petitioner in any manner with the alleged crime. Even otherwise, the petitioner has been arrested on 18.06.2018 and since then he is behind the bar. The report u/s 173 of the Code of Criminal Procedure, 1898 has already been sent before the learned Trial Court on 26.06.2018 and there is no progress in the trial so far. The further incarceration of the petitioner for indefinite period would not serve any beneficial purpose for the prosecution. Reliance in this regard is placed on the dictum laid down by the august Supreme Court of Pakistan in case titled Abdul Ghaffar v. The State and others (2016 SCMR 1523).

6. In view of the above, this Court found that there are sufficient reasons to believe that the case of the petitioner called further probe into his guilt within the scope of section 497(2) of the Code of Criminal Procedure, 1898.

7. Under the circumstances, this petition is allowed, and the petitioner is admitted to post-arrest bail, subject to his furnishing surety bond in the sum of Rs.2,00,000/- (Rupees two lacs) with one surety in the like amount to the satisfaction of the learned Trial Court.

**(Muhammad Waheed Khan)**  
**Judge**

\*Mumtaz\*

Approved for reporting.

**JUDGE**